

Dr. Jaya Thakur & Ors. v. Union of India

Citation: (2025) 3 SCC 120 | Court: Supreme Court | Year: 2025

Coram: 3-Judge Bench (Sanjiv Khanna & Dipankar Datta JJ.) | Subject: Constitutional Law | Provisions: Article 324 & CEC Act 2023

I. EXECUTIVE SUMMARY & CASE GLIMPSE

While Parliament possesses legislative competence under Article 324(2) to enact the procedure for appointing the Chief Election Commissioner and Election Commissioners, institutional autonomy and non-partisan neutrality are non-negotiable components of free and fair elections, forming part of the Basic Structure.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Article 324 & CEC Act 2023. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Article 324 & CEC Act 2023.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The independence of the Election Commission of India is essential to democratic governance. Statutory selection panels must ensure institutional insulation and transparent shortlisting with adequate advance notice to all committee members.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Reaffirmed that free and fair elections are an unalterable facet of the Basic Structure.
- â€ Mandated transparent record-keeping and advance circulation of candidate profiles.
- â€ Clarified judicial review standards over statutory selection mechanisms under Article 324.